

25NWCV04541 25NWCV04541

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-21

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Case Number: 25NWCV04541 Hearing Date: July 21, 2026 Dept: L

Defendants La Mirada Post

Acute, LLC and Sun Mar Management Services' Motion to Compel Arbitration is
CONTINUED to July 28, 2026 at 9:30 a.m. in Dept. L.

Defendants to give notice.

Background

This is an action for elder abuse. On December 23, 2025, Plaintiff Mary Oda, by and through er Guardian Ad Litem, Carol Shimizu, ("Plaintiff") filed this action against Defendants La Mirada Post Acute, LLC, Sun Mar Management Services, Core Analytics Radiology, Inc., Brian Yue, M.D., Linda Anne Hughes, M.D., Flex Telerad, LLC, and Does 1 to 50. The Complaint stems from Plaintiff's residency at La Mirada Post Acute, LLC, a skilled nursing facility. The Complaint alleges that due to Defendants' negligence and neglect, Plaintiff suffered various injuries, some of which went undiagnosed.

The Complaint alleges the following causes of action: 1) Elder Abuse and Neglect (against Defendants La Mirada Post Acute, LLC and Sun Mar Management Services), 2) Violation of Health and Safety Code § 1430(b) (against Defendant La Mirada Post Acute, LLC), and 3) Negligence (against all Defendants).

Defendants La Mirada Post Acute, LLC and Sun Mar Management Services (hereinafter, "Defendants") now move to compel arbitration and stay the action.

Discussion

Defendants purport to attach the subject Arbitration Agreement as “Exhibit A” to the Declaration of Wendy Le.

However, the Court notes that no such document is attached under “Exhibit A.”

Based on the Court’s preliminary reading of the Motion papers, the parties dispute whether Plaintiff signed the referenced agreement, whether Plaintiff lacked capacity to sign the agreement, and whether Jennifer Ueda, Plaintiff’s eldest daughter, had authority to sign the document as Plaintiff’s legal representative.

Because the existence of an arbitration is agreement is in dispute, the Court requires that Defendants re-submit the referenced agreement for the Court’s review.

Accordingly, Defendants’ Motion to Compel Arbitration is CONTINUED to July 28, 2026 at 9:30 a.m. in Dept. L.

Defendants are required to submit “Exhibit A” to the Declaration of Wendy Le by July 24, 2026.